# Public Protection Policy

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## i) Consultation and Distribution Record

| **Consultation and Distribution Record** | |
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| Distribution: | All staff through general management scheme of delegation. |

## ii) Change Record

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## 1. Introduction

Public Protection is about preventing harm to individuals within society specifically the most vulnerable. It is an issue of fundamental importance to NHS Greater Glasgow and Clyde (NHS GGC). There are clear links to be made across a range of service areas that relates to public protection:

- Child Protection
- Adult Support & Protection
- MAPPA (Multi Agency Public Protection Arrangements for the management of sexual and/or violent offenders)
- Violence Against Women and Girls
- Alcohol, Drugs and Substance Use

NHSGGC is Scotland's largest territorial Board. It recognises its responsibility with regard to concerns about the care, protection and wellbeing of vulnerable people across the lifespan. NHSGGC has an essential role in preventing and reducing the risk of abuse or neglect. There is a commitment to ensuring that all staff are confident and competent to undertake their role in identifying and responding appropriately to concerns.

NHS GGC recognises that it is vital that its staff work with their partners within Local Authorities, Police Scotland and Third Sector, towards providing protection for vulnerable individuals where individuals are or thought to be at risk of harm.

## 2. Policy statement

To assist NHSGGC fulfil its responsibilities and duties for keeping the unborn child, children, young people and adults at risk safe from harm and abuse, applying Getting it Right For Every Child principles to promote, support, and safeguard the wellbeing of NHSGGC population and to comply with relevant procedures and law.

This policy is underpinned by NHSGGC values and objectives and is focussed on prevention.

## 3. Scope

This policy applies to all staff employed by NHSGGC including independent contractors, and volunteers, regardless of whether they come into contact or work directly with vulnerable groups. Specific operational procedures and guidelines are in place for child protection and for adult support and protection.

## 4. Definitions

- **Public Protection** – involves agencies working together at all levels to raise awareness and understanding and co-ordinate an effective response to ensure the protection of individuals identified as being at risk of harm.

### 4.1 Child Protection

In Scotland, a child can be termed differently in different legal contexts. This means that the legislation that may support professionals to achieve protective interventions will depend on the circumstances, legislation or policy framework relevant to the child or young person at that time.

**Child Protection** – for the purposes of this guidance a child is defined as a person **who has not reached the age of 18 years**. The United Nations Convention on the Rights of the Child[1] (UNCRC) applies to anyone under the age of 18. All children and young people have the right to be protected from abuse or neglect.

Where a young person between the age of 16 and 18 is assessed to require protection, services will need to consider which legislation or policy framework can be applied.

The following legislation is considered to be relevant:

The Children (Scotland) Act 1995 [2]
The Children's Hearings (Scotland) Act 2011[3]
The Children and Young People (Scotland) Act 2014[4]
The Human Trafficking and Exploitation (Scotland) Act 2015[5]
Adult Support and Protection (Scotland) Act 2007[6]

Practitioners should consider whether adult protection measures will apply in the absence of child protection measures being applicable for this age group.

- Adult at Risk is a person aged sixteen years or over who:
- Is unable to safeguard their own well-being, property, rights or other interest;
- Is at risk of harm, and
- Because they are affected by disability, mental disorder, illness or physical or mental infirmity, is more vulnerable to being harmed than adults who are not so affected.

MAPPA arrangements support public protection. Requires police, criminal justice and health to work together to assess and manage risk posed by certain categories of offenders. Health professionals should have and maintain their awareness of MAPPA including the role of the MAPPA Health Manager and their role with staff.

Scottish Government recognises that there is often an overlap between child and adult services and the Children and Young Person's Act (2014)[4] terms children up to the age of 18 years. Young people aged between 16 and 18 are particularly vulnerable to falling between the gaps. The young person's age and circumstance will dictate the

legal measures that will be applied and so there is often a cross over between child and adult services, and legislation, that require highly complex assessment and decision making.

### 4.2 Adult Protection

Adult protection is defined using the 3 point test as below. This test is not exhaustive and if an adult is considered to be at risk then an adult protection concern should still be raised.

Adult at Risk is a person aged sixteen years or over who:

- Is unable to safeguard their own well-being, property, rights or other interest;
- Is at risk of harm, and
- Because they are affected by disability, mental disorder, illness or physical or mental infirmity, is more vulnerable to being harmed than adults who are not so affected.

The following legislation is relevant:

Adult Support and Protection (Scotland) Act (2007)[6]

Mental Health (Care and Treatment) (Scotland) Act (2003)[7]

Adults with Incapacity (Scotland) Act (2000)[8]

- Duties and Responsibilities – it is the duty and responsibility of NHSGGC staff to raise concerns as per Child Protection procedures and Adult Support and Protection procedures. It is also the duty and responsibility of NHSGGC staff to cooperate with the Local Authority and Police Scotland in relation to enquiries and investigations for child protection and adults at risk.

- Abuse and Neglect – are forms of maltreatment of a child or adult. It may involve inflicting harm or by failing to act to prevent harm. Children and adults may be maltreated at home; within a family or peer network; in care placements; institutions or community settings; and in the online and digital environment. Those responsible may be previously unknown or familiar, or in positions of trust. They may be family members. Children may also be harmed pre-birth, for instance by domestic abuse of a mother or through parental alcohol and drug use.

- Harm – can result from a specific incident, series of incidents or an accumulation of concerns over a period of time.

## 5. Roles and Responsibilities

All NHSGGC staff have a duty to act, report concerns and comply with statutory agencies in terms of enquiries and investigations.

All NHSGGC staff have a professional duty to recognise and respond to concerns about children and adults in accordance with the Multi-Agency Child and Adult procedures where:

- they know or believe that an unborn baby, child or young person is known or believed to be at risk of significant harm or

- they know or believe that an Adult is at Risk of Harm and may be in need of care and/or protection.

### 5.1 All staff also have a responsibility to ensure they comply with any:

- Public Protection mandatory/bespoke training
- Requests to attend interagency public protection training as part of their role
- The identification of any public protection learning needs as part of their continuous professional development. Contact Public Protection Service for any advice/support around public protection that is required.
- Request supervision in relation to public protection if/as required.

### 5.2 Corporate Responsibility

The Chief Executive of NHSGGC has overall responsibility and is accountable to the Scottish Government for Public Protection. The Board Nurse Director is the delegated executive lead for Public Protection supported by the Chief Nurse, Head of Public Protection Service have responsibility for ensuring the following are in place:

- Robust governance an accountability reporting frameworks
- Robust arrangements for participation with Chief Officer Group(COG)
- Ensuring all health staff within NHSGGC have access to expert professional leadership.
- Training, advice and supervision.
- Robust processes for learning lessons from significant cases where children or adults die, are seriously harmed where abuse and neglect is suspected.

## 6. Information Sharing and Data Protection

Information sharing is crucial in public protection. Practitioners must be confident to share information appropriately when protecting vulnerable individuals. Failures of communication lie at the heart of many Significant Case Reviews (SCRs). At the same time, care should be taken to maintain the right to privacy of individuals when it is

appropriate to do so. All health staff and managers should understand when and how they may share information.

Professionals should refer to their own professional body's advice regarding information sharing. For example, the GMC offers this information on confidentiality and sharing information, the NMC has this Code for nurses and midwives.

Legislation underpinning information sharing includes General Data Protection Regulation[9] (GDPR), the Data Protection Act 2018[10], The Human Rights Act 1998[11] and the European Convention on Human Rights[12] (ECHR). This legislation supports lawful information sharing and as such should not be seen as a barrier.

Consideration should also be given to The Common Law Duty of Confidentiality and for health data the Caldicott Principles which provide guidance on how patient data should be used. The following are regarded as the **'seven golden rules'** of information sharing:

1. Data Protection Law should not be regarded as a barrier to sharing information.
2. A record should be kept of what has been shared, with whom and for what purpose, and of every decision made and the reasoning behind it.
3. It is important to be open and honest with the individual concerned (and their family, where appropriate) from the outset, about why, what, how and with whom information will, or could, be shared, and to seek their agreement, **unless** it is unsafe or inappropriate to do so and may place the child or others at greater risk of harm.
4. Information may be shared lawfully without consent if it is believed, based on the facts of the case, that lack of consent can be overridden in the public interest or seeking consent would be harmful to an investigation. Consent will not apply where the matter is clearly one of protecting children or adults at risk of harm. Consent should not be sought if the decision has already been taken to share the information. Base your judgement on the facts of each individual case.
5. If there is reasonable concern that a child/young person or adult is or is likely to be at risk of harm this will always override a professional or agency`s requirement to keep information confidential. All professionals and service providers have a responsibility to act to make sure that children who may be at risk are protected from harm.
6. It is important to consider the safety and well-being of the individual concerned, as well as others who may be affected by their actions.
7. Information sharing should always be necessary, proportionate, relevant, accurate, timely and secure.

The Board Data Protection Officer should be contacted for advice to address any concerns or questions on data sharing.

## 7. Media Interest

Any safeguarding issue that may attract media interest should be shared with the Board Nurse Director, the Head of Public Protection Service and Communications team.

## 8. Equality Impact Assessment

NHSGGC aim to ensure that all staff members are treated in a fair and equitable manner and with dignity and respect in accordance with the Equality Act 2010[13] and the organisational values set out in the NHS Scotland Workforce 2020 Vision Plan[14].

This Policy reflects NHSGGC commitment to developing and promoting policies and procedures to meet individual's needs in a positive supportive way. All procedures are implicit of people's rights not to be discriminated against regardless of race, gender, ability needs, sexual orientation, age or religion, Implementation of the Policy will show due regard to the Equality Act[13] and Public Sector Equality Duty in order to:

- Eliminate unlawful discrimination, harassment and victimisation
- Advance equality of opportunity between groups of people with different protected characteristics
- Foster good relations between groups of people with different protected characteristics.

## 9. Communication and Implementation

This policy will be shared through the general management scheme of delegation, as well as via the Public Protection reporting arrangements.

Implementation will be the responsibility of Chief Officers and Directors using existing local governance architecture.

## 10. Monitoring

Implementation of the policy will be monitored as part of the Public Protection Quality Assurance Framework (QAF)[15] which will align with NHSGGC Performance Review arrangements for its corporate objectives.

## 11. Review

The policy review cycle will be every 3 years unless there is a need to review outwith this timescale.

## 12. References


1. The United Nations Convention on the Rights of the Child
   United Nations Convention on the Rights of the Child

2. Children (Scotland) Act 1995
   https://www.gov.scot/binaries/content/documents/govscot/publications/advice-and-guidance/2004/10/scotlands-children-children-scotland-act-1995

3. The Children's Hearings (Scotland) Act 2011
   https://www.legislation.gov.uk/asp/2011/1/contents

4. Children and Young People (Scotland) Act 2014
   https://www.legislation.gov.uk/asp/2014/8/contents/enacted

5. The Human and Exploitation (Scotland) Act 2015
   https://www.legislation.gov.uk/asp/2015/12/contents#

6. Adult Support and Protection (Scotland) Act 2007
   Adult Support and Protection (Scotland) Act 2007

7. Mental Health (Care and Treatment) (Scotland) Act 2003
   https://www.legislation.gov.uk/asp/2003/13/contents

8. Adults with Incapacity (Scotland) Act 2000
   Adults with Incapacity (Scotland) Act 2000

9. General Data Protection Regulation (GDPR)
   guide-to-the-general-data-protection-regulation-gdpr-1-1.pdf (ico.org.uk)

10. Data Protection Act 2018
    Data Protection Act 2018

11. The Human Rights Act 1998
    Human Rights Act 1998

12. European Convention on Human Rights (ECHR)
    European Convention on Human Rights (ECHR)

13. Equality Act 2010
https://www.gov.uk/guidance/equality-act-2010-guidance

14. Scottish Government (2013) Everyone Matters: 2020 health workforce vision.
Everyone Matters: 2020 Workforce Vision

15. Scottish Government (2022) NHS Boards Public Protection Accountability and Assurance Framework (October 2022)
NHS Public Protection Accountability and Assurance Framework

## 13. Other Relevant Resources

Scottish Government (2022) Getting it Right for Every Child (Refresh)
https://www.gov.scot/policies/girfec

Counter Terrorism and Security Act 2015 (PREVENT)

Prevent duty guidance - GOV.UK (www.gov.uk)

Equally Safe/Health Guidance Gender Based Violence (GBV)
https://www.gov.scot/publications/equally-safe/

General Medical Council (GMC) Code

Inter-agency Child Protection procedures – as per local area

Public protection Arrangement (MAPPA) National Guidance 2022

Scottish Government Multi-Agency Public Protection Arrangements (MAPPA) National Guidance - 2022

National Guidance for Child Protection in Scotland 2021 – updated 2023

National Guidance for Child Protection in Scotland 2021 - updated 2023

National Missing Persons Framework for Scotland

National Missing Persons Framework for Scotland - gov.scot (www.gov.scot)
Children (Equal Protection from Assault) (Scotland) Act 2019 (legislation.gov.uk)

NHSGGC Child Protection Procedures

NHS Education for Scotland (2011) Core Competency Framework for the Protection of Children

child protection web.pdf (scot.nhs.uk)

Nursing & Midwifery Council (NMC) Code

Public Bodies (Joint Working) (Scotland) Act 2014
http://www.legislation.gov.uk/asp/2014/9/contents/enacted

Royal College of Paediatrics and Child Health (2010) Safeguarding Children and Young People: Roles and competencies for healthcare staff. Intercollegiate document.

Safeguarding Children and Young People: Roles and Competencies for Healthcare Staff | Royal College of Nursing (rcn.org.uk)

Scottish Executive (2010) Protecting Vulnerable Groups Scheme. Guidance for individuals, organisations and personal employers.
http://www.disclosurescotland.co.uk/pvg/316389_v6_20100628.pdf

Scottish Government (2012) A Guide to Getting it Right for Every Child
http://www.scotland.gov.uk/Topics/People/Young-People/gettingitright

Scottish Government (2013) Child Protection Guidance for Health Professionals - no longer used

http://www.scotland.gov.uk/Resource/00411543.pdf

Scottish Government (2014) Statutory Guidance on Corporate Parenting

Statutory guidance on Part 9 (Corporate Parenting) of the Children and Young People (Scotland) Act 2014 - gov.scot (www.gov.scot)

Scottish Government (2021) National Guidance for Child Protection

National Guidance for Child Protection in Scotland 2021

Sexual Offences (Scotland) Act 2009
https://www.legislation.gov.uk/asp/2009/9/section/42

The Age of Legal Capacity (Scotland) Act 1991 (section2 (4)
https://www.legislation.gov.uk/ukpga/1991/50/section/2

The Domestic Abuse Act Scotland (2018)

www.legislation.gov.uk/asp/2018/5/contents

The Human Rights Act 1998
Prohibition of Female Genital Mutilation (Scotland) Act 2005
Female Genital Mutilation (FGM) - Violence against women and girls (VAWG) - gov.scot (www.gov.scot)

The United Nations Convention on the Rights of the Child (UNCRC)
https://www.gov.scot/policies/human-rights/childrens-rights

West of Scotland Interagency Adult Support and Protection Practice Guidance